

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

20230930-DK-BUTTERFLY-1, INC., *Complainant*

v.

BAL CONTAINER LINE CO., LIMITED, *Respondent*.

DOCKET NO. 25-01

Served: May 27, 2025

ORDER OF: Erin M. WIRTH, *Chief Administrative Law Judge*.

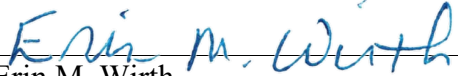
ORDER ON JOINT MOTION TO EXTEND DEADLINES

On May 20, 2025, the parties filed a joint motion to extend deadlines (“Motion”) seeking to extend the remaining deadlines. The parties state that they “are working diligently and collaboratively to complete their obligations” but that they have not yet completed discovery. Motion at 2. Complainant recently filed a motion to compel which is pending. In addition, the parties “each intend to depose multiple party and non-party fact witnesses.” Motion at 3. The parties “agree that an extension of the remaining deadlines is necessary and reasonable to allow the Parties a fair opportunity to review all documents, prepare for and take depositions of each other’s fact witnesses, assess the need for additional discovery, and to complete ultimate briefing.” Motion at 3.

The proposed schedule provides more time than typically required between the completion of fact depositions and expert depositions. In addition, the proposed schedule provides more time than typically provided for the final reply briefing. Therefore, the first few deadlines will be approved. However, the parties will need to file a joint status report with proposed schedule on July 15, 2025, proposing a more condensed schedule to complete briefing.

Therefore, the motion is **GRANTED IN PART and DENIED IN PART**. The following deadlines are extended and the parties should resubmit their request on July 15, 2025.

July 15, 2025	Substantial completion of productions of documents and ESI in response to initial RFPs. Parties file joint status report with proposed revised schedule.
Aug. 31, 2025	Complete depositions of fact witnesses.


Erin M. Wirth
Chief Administrative Law Judge